Notification Waiver Determination

Koch – additional interest in Victoria PLC

Acquisition	Koch Equity Development LLC (**Koch**) applied for a notification waiver in respect of its proposed acquisition of an increased ordinary shareholding in Victoria PLC (**Victoria**), as described in the transaction documents provided as part of the application (the **Acquisition**). The Acquisition involves Koch increasing its ordinary shareholding in Victoria, together with board appointment and other governance and oversight rights, as part of a wider restructuring of Victoria's debt and preference shares. Following the Acquisition, Koch is expected to hold approximately 24.9% of Victoria's enlarged fully diluted ordinary share capital.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	11 August 2026

Parties to the Acquisition	The acquirer, Koch, is a wholly owned subsidiary and the principal investment and acquisition arm of Koch, Inc., a privately held business in America. It is involved in a variety of industries, particularly the manufacturing, refining, and distribution of petroleum, chemicals, energy, fibre, intermediates and polymers, minerals, fertiliser, raw materials trading, and investments. The target, Victoria, is listed on the London Stock Exchange and headquartered in Worcester, United Kingdom. Victoria designs, manufactures, and distributes carpet, flooring underlay, ceramic tiles, artificial glass, and flooring accessories. In Australia, Victoria supplies flooring products through its subsidiaries The Victoria Carpet Company Pty Limited, Quest Flooring Pty Ltd, and Primary Flooring Pty Limited (trading as Dunlop Flooring).
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap between the operations of Koch, Victoria, or their connected entities in Australia

	b. there is low risk of foreclosure or other concerning vertical effects arising from the Acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers for acquisitions and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act